Applications for Registrar, Controller of Examinations and Dean of Students Advertisement No:RECR/03/11- 12

Presidency University invites applications in prescribed forms for the post of Registrar, Controller of Examinations and Dean of Students.

[Last date of submission 9th April 2012]

Essential and desirable qualifications are as follows.

1. Registrar (One Post)

Qualifications

(a) Essential

- Uniformly good academic record with a B+ Master's Degree or its equivalent.
- At least 15 years experience in Academic Institutions like University or in an Institute of higher learning of which 5 years must be in high level administration in a University or in an Institute of Post-Graduate Study.
- Age not less than 40 years. Relaxable in case of exceptionally qualified candidate.

(b) Desirable

- A doctorate degree or publish research work of merit
  OR
  High level administrative experience in a Government or Quasi-Government organization or a good background in administration and management in senior position.

2. Controller of Examinations (One Post)

Qualifications

- Qualification as in serial 1.
- For the post of Controller of Examinations, it is essential to have experience in conducting examinations either in Institution of higher learning or in Service Commission.

3. Dean of Students (One post)

Qualifications

- Qualification as in serial 1.
- Experience in Behavioural Science will get preference.

Scale of Pay

- Rs 37,400 - 67,000/- + AGP Rs. 10,000/- for all the above posts

Note

Complete application forms (7 copies along with copies of all certificates / testimonials) must be submitted either by post to the 'Registrar, Presidency University, 86/1 College Street, Kolkata – 700073, India' or in person to the office of the Registrar on any working day between 11.00 a.m. and 4.00 p.m., not later than **9th April 2012**.

PRESIDENCY UNIVERSITY

86/1 College Street, Kolkata – 700073, India

APPLICATION FOR THE POST OF UNIVERSITY OFFICER
Information Summery Sheet

Post Applied For..... Registrar .....

Advertisement No. & Date..... RECR/03/11-12 .....

Name (In block letters) JADAB *First name* KUMAR *Middle Name* PAL *Surname*

Current Employment

Sl	Designation	Organization / Institute	From	To
1.	Admin officer	ISI Kolkata	10.04.2008	contd.

Listed Category.... OBC .... [SC/ST/OBC(A or B) /PH] Date of Birth 05/01/1964
dd / mm / yyyy

Qualification:

	Title	Year
Masters	Physics	1987
Ph.D.	Thesis to be submitted	
Any other	LLM	1996

Publications: (specify No. only) National..... 1 .....International..... 1 .....

Awards & Memberships: Silver Medal for securing 2nd position in LL.M.

Professional and Administrative Responsibilities (in brief):

(1) Handling all legal cases ~~assisting~~ briefing advocates etc

(2) Managing man, money and materials

Date 23/03/2012

Jadab Kumar Pal
Signature

PRESIDENCY UNIVERSITY

86/1 College Street, Kolkata – 700073, India

APPLICATION FORM FOR THE POST OF UNIVERSITY OFFICER

Paste Current Photo

Post Applied For * Registrar

Advertisement No. & Date* RECR/03/11-12

Email Address * jadabpal@yahoo.co.in

Name * (In block letters): MR. (Salutation) | JADAB (First name) | KUMAR (Middle Name) | PAL (Surname)

Nationality * Indian

Personal Website

Contact Number * +91 (Country) | 033 (Area) | 25752158 (Number)

Gender * Male | Listed Category * OBC (SC / ST / OBC(A) / OBC(B) / PH)

Marital Status * Married | Date of Birth * 05/01/1964 (dd / mm / yyyy)

Address * 98 Desh Bandhu Road (E), Kolkata - 700035

Country * India | State * WB.

City * Kolkata | Pin * 700035

* Fields are Mandatory

HS / ISC / CBSE / (10+2) or Equivalent *

Srl #.	School /College/ Board	Exam passed	Year of Passing	Class or Division	Percentage of Marks	Subjects Studied	Any Other Information
1	WBCHSE	HS	1981	~~54.80~~ II	54.80	Phy Che etc	—

Graduation *

Srl #	College & University	Exam passed	Year of Passing	Class or Division	Percentage of Marks	Subjects Studied	Any Other Information
1.	Siliguri College	B.Sc(H)	1984	I	61.75	Physics	10Th
2	NBUL College	LL.B	1992	II	58.00	Laws	3rd

Masters *

Srl #.	College or University	Exam passed	Year of Passing	Class or Division	Percentage of Marks	Subjects Studied	Any Other Information
1	Dept of Phy NBU	M.Sc.	1987	I	66.25	Physics	3rd
2	NBU Law Colg	LL.M	1996	I	60.80	Laws	2nd
3	DDE, PU	PGDBA	2002	II	52.60	Mangemt	—

Doctoral Degrees

Srl #	University	Year of completion	Subject / Field	Dissertation title	Any Other Information
1	IIT KGP	2005	IR Course work	4 Cr.	
2	IIT KGP	—	child labour	socio-economic Study of Child labour.	

Other Degrees

Srl #	Degree	University or Institute	Year of Completion	Class or Division	Subject (s)/ Discipline	Any Other Information
1.	Prugya	MHRD	2003	~~75%~~	Hindi	
2.	Adv Wrd	ISI	2012	70%	Computer	3rd
3.	& Dpcy e-Commerce	WIPO				

* Fields are Mandatory

Employment Details

Srl #	Organization / Institute	Designation	Date of joining	Date of Leaving	Scale of Pay
1	ISI Kolkata	Adm Offr	10.04.2008	——	Rs 15600-39100/- ap- 5400/-
2	IIT KGP	Asstt. Registr	03.08.00	09.04.08	Rs 8000-13500/-
3.	WB PCB	Jr. Scientist	19.04.00	02.08.00	Rs 11668/-
4	Jalpaiguri law College	Lecturer	03.11.1997	02.11.1999	Rs 5000/-
5.	Dhubri Law College	Lecturer	21.04.1997	02.11.1997	Rs 2200-4000/-

Present Pay & Allowance

Currency	Scale of Pay	Basic Pay	Allowance	Gross Amount Drawn
₹	15600-39100	21900	34000	55900

Can You Join immediately Yes (✓) No ( ) I can join after [~~30~~] days

Have you ever been dismissed / removed / asked to retire from service? Yes ( ) No (✓)

If yes give details

Not applicable.

Publications (Select 5 publications)

Srl #	
1	What makes child workers go to school?
~~2~~	A Case Study from West Bengal. ILR Vol 150 (2011) No 3-4
2.	Risk Factor Associated with Morbidity
	Pattern of working children
	J Life Sci 3(2): 147-156 (2011)

Awards and Memberships

Srl #	
1.	Silver Medal for securing 2nd position in LL.M.

Administrative Responsibilities

Srl #	
	House Building advance
	Guest House
	Hostels
	RTI Matters

Professional Responsibilities

Srl #	
	Handling legal cases pending before the Hon'ble High Court, Hon'ble Supreme Court etc
2.	Managing room money and materials

Any Other Information

(1) Cracked WBCS (J) in 1999
(2) During Ph.D. in IIT Kharagpur
(3) Trained in handling Administrative Vigilance from ISTM, Govt of India.

Referees

Srl #	Name & designation	Address	Email Id	Contact Number
1.	Shri A.K. Biswas	203 B.T. Road	akbiswas@isical.ac.in	9903814440
	Dy-CE (Admin)	Kolkata-108		
2.	Shri K.B. Mahapatra	College of Engg. & Mgmt.	bklucky51@yahoo.com	9932676367
	Ex Manager, IIT and Home	Kolaghat		

Shri B.K. Barman Roy
Chowdhury, Registrar

Declaration

I declare that the entries made in this form are true to the best of my knowledge and belief.

Place Kolkata 108

Date 23/03/2012

Signature

Presidency University
Kolkata

Office of the Registrar
Presidency University
86/1 College Street, Kolkata – 700073, India

No: Date: 24.04.2012

From
Dr P. K. Sengupta
Registrar
Presidency University, Kolkata

To
Mr. Jadab Kumar Pal
3rd Floor, 98 Desh Bandhu Road (East),
Kolkata – 700035

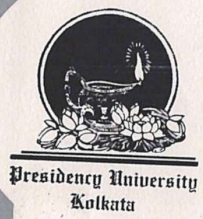
Dear Sir / Madam,

With reference to your application for the post of **Registrar** of our University, you are hereby requested to appear before the Selection Committee on **10th May 2012** at **11:00 a.m.** in Vice Chancellor's office, Main building, Presidency University.

You are requested to bring all the testimonials including mark-sheets and other relevant papers / documents etc. If you are an employed person and have not applied through proper channel please bring a 'No Objection Certificate' from your employer.

The University will not bear your travel expenses.

Registrar



Presidency University

(Formerly Presidency College)

NEW DTDC OPEN
at BARANAGAR
25/A/2, B. P. Mitra Rd., Kol-35
Bus Stop : Kalitala Math
Near : Bandhu Asar Club

Mr. Jadab Kumar Pal
3rd Floor, 98 Desh Bandhu Road (East),
Kolkata – 700035

New DTDC Open
at Baranagar
Call-9231421346/9230816 57
for free pickup from
office / home

DTDC K52663059

86/1, College Street, Kolkata - 700 073, India
Phone : (033) 2241 1960 / 2241 2738

WEST BENGAL INFORMATION COMMISSION
Bhabani Bhaban (2nd Floor), Alipore
Kolkata -700 027
Telefax(033)2479-1966
Website : www.wbic.gov.in
E-mail : scic-wb@nic.in

No. 2964-WBIC/RTI/14/08 **Date: 18.11.2009**

CIRCULAR

A large number of complaints / appeals u/s 18 and 19 of the RTI Act from the information-seekers are being received by the West Bengal Information Commission. For easy and quick disposal of the said complaints / appeals, the Commission has decided that the complainants / appellants shall submit their complaints / appeals in the following format:-

Complaint / Appeal Format

(To be submitted in quadruplicate alongwith all enclosures)

1. Name of the Complainant / Appellant:

2. Address:

3. Telephone No.: (if any)

4. Whether copy of RTI Request is attached:

5. Whether prescribed application fee was attached with the RTI application:

6. Whether copy of 1st appeal u/s 19(1) is attached:
   (For filing appeal only)

7. Name and address of the S.P.I.O. with his Telephone No. if any:

8. Name and Address of the 1st Appellate Authority with his / her Telephone No. if any:
   (For filing appeal only)

9. Prayer or Relief sought:

State Chief Information Commissioner
Attn.: Shri Sujit Kumar Sarkar
West Bengal Information Commission
Bhabani Bhawan 2nd Floor
Alipore, Kolkata-27.

Contd....p/2

10. Grounds for the prayer or relief:

11. Verification by the complainant / appellant as under:

"I,..... S/o (D/o) ..... aged about ..... being an Indian citizen do hereby solemnly affirm that the statements made in my above complaint / appeal are true to my knowledge based on records and the rest are my humble submissions to the Hon'ble West Bengal Information Commission."

Place: **Signature of the complainant / appellant**

Date: **(Name of the complainant / appellant)**

12. Any other information which the complainant / appellant intends to bring to the notice of the Commission:

13. Whether self attested:

14. Page numbering:

15. All index of the documents referred in the complaint/appeal:

The Circular will take effect from 1.12.2009. Non submission of complaint / appeal in the above proforma will be rejected automatically.

Sd/-

Secretary
West Bengal Information Commission

J.K.Pal
3rd Floor, Flat No.- 4A
98 Desh Bandhu Road (E)
Kolkata -700035



08.08.2012

The Appellate Authority (Under the RTI Act)
Presidency University
86/1 College Street
Kolkata – 700073

Sub: Appeal for information under section 19 read with section 7(6) of the RTI Act 2005

Dear Sir/ Madam

I have filed a RTI application dated 05.07.2012, before the PIO along with the requisite fees of Rs.10.00, but the PIO has not replied and denied all information. The copy of the RTI application dated 05.07.2012 is enclosed for your ready reference.

I, therefore, request you to kindly provide me the following information free of cost under section 7(6) of the RTI Act 2005:

1. Whether the Presidency University has complied with the Section 4(1)(b) of the Right to Information Act 2005?
2. Authenticated copy of advertisement for the post of Register published in the year 2012 for which the interview was conducted on 10th May 2012 at your University.
3. Name of all the candidates who have appeared at the interview held on 10th May 2012 for the post of Registrar.
4. Authenticated copy of the applications submitted by all the candidates who have appeared at the interview for the post of Registrar on 10th May, 2012, along with the photocopy of testimonials e,g marksheets for passing Class X, XII, Graduation, post graduation and certificate for Ph.D.etc and their copy of publications.
5. Name, designation and official address of all the members of the selection committee for the interview said interview.
6. Authenticated photo copy of the decision/ recommendation and non-recommendation of the selection committees for the interview as mentioned above.
7. Authenticated copy of the marks given to all the candidates by the members of the Selection Committee and its evaluation sheet at the interview as mentioned above.
8. Authenticated copy of the Rules and procedure for the recruitment of Registrar in your Institution.
9. Name of the candidate selected and joined in your university for the said post.
10. Whether all the selected candidates, for the post of Registrar possessed both the requisite Essential Qualifications and Desirable Qualifications as per advertisement.

Thanks and regards

Yours sincerely

(J.K.Pal) O/C

Enclosure: RTI application dated 05.07.2012

J.K.Pal
3rd Floor, Flat No.- 4A
98 Desh Bandhu Road (E)
Kolkata -700035

05.07.2012

The Public Information Officer
Presidency University
86/1 College Street
Kolkata – 700073

Dear Sir/ Madam

Kindly provide me the following information under the RTI Act 2005:

1. Whether the Presidency University has complied with the Section 4(1)(b) of the Right to Information Act 2005?
2. Authenticated copy of advertisement for the post of Register published in the year 2012 for which the interview was conducted on 10th May 2012 at your University.
3. Name of all the candidates who have appeared at the interview held on 10th May 2012 for the post of Registrar.
4. Authenticated copy of the applications submitted by all the candidates who have appeared at the interview for the post of Registrar on 10th May, 2012, along with the photocopy of testimonials e,g marksheets for passing Class X, XII, Graduation, post graduation and certificate for Ph.D.etc and their copy of publications.
5. Name, designation and official address of all the members of the selection committee for the interview said interview.
6. Authenticated photo copy of the decision/ recommendation and non-recommendation of the selection committees for the interview as mentioned above.
7. Authenticated copy of the marks given to all the candidates by the members of the Selection Committee and its evaluation sheet at the interview as mentioned above.
8. Authenticated copy of the Rules and procedure for the recruitment of Registrar in your Institution.
9. Name of the candidate selected and joined in your university for the said post.
10. Whether all the selected candidates, for the post of Registrar possessed both the requisite Essential Qualifications and Desirable Qualifications as per advertisement.

IPO for Rs.10.00, having No.01F 431498 is enclosed.

Thanks and regards

Yours sincerely
Sadaluk Pal
(J.K.Pal) 5/7/2012

Enclosure: As stated.

भारतीय डाक
India Post
<Duplicate> SP ISI POSTOFFICE
EW056756921IN
Counter No:1,OP-Code:1
To:THE PUBLIC INFORMATI,86/1 COLLEGE ST
KOLKATA, PIN:700073
From:J K PAL , 98 D B R E
Wt:12grams,
PS:15.00, , 05/07/2012 , 10:02
Taxes:Rs.1.11<EDD(If not a holiday):00:00:00

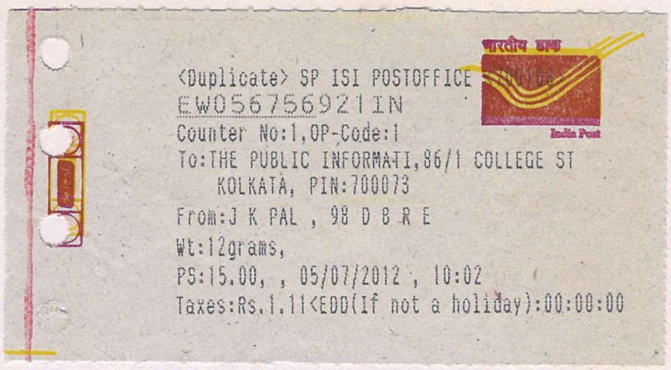
अधिपत्र COUNTERFOIL
इसे फाड़कर प्रेषक अपने पास रख ले।
To be detached and kept by the Sender.
पोस्टल आर्डर
रूपए 10.00Rs.
POSTAL ORDER
किसे अदा करना
To whom payable Presidency Univ.
किस डाकघर में
At what Office Kolkata
क्या इसे क्रास किया है
Whether crossed yes
भेजने की तारीख
Date sent 5/7/2012
01F 431398

Track Result for: EW056769531IN Track More

Booked at	Booked On	Delivered at	Delivered on	
ISI PO S.O	08/08/2012	Bowbazar S.O (Kolkata)	10/08/2012	Details

Detailed Track Events For EW056769531IN

Date	Time	Status at	Status
08/08/2012	12:12:59	ISI PO S.O	Item Booked
08/08/2012	15:44:55	ISI PO S.O	Item bagged for KOLKATA RMS
08/08/2012	15:56:07	ISI PO S.O	Bag Despatched to KOLKATA RMS
08/08/2012	20:40:34	KOLKATA AIRPORT	Bag Received
09/08/2012	10:43:34	KOLKATA AIRPORT	Item bagged for Bowbazar S.O (Kolkata)
09/08/2012	11:21:31	KOLKATA AIRPORT	Bag Opened
09/08/2012	11:21:31	KOLKATA AIRPORT	Item Received
09/08/2012	17:11:35	KOLKATA AIRPORT	Bag Despatched to Bowbazar S.O (Kolkata)
10/08/2012	08:46:52	Bowbazar S.O (Kolkata)	Bag Received
10/08/2012	08:58:01	Bowbazar S.O (Kolkata)	Bag Opened
10/08/2012	08:58:01	Bowbazar S.O (Kolkata)	Item Received
10/08/2012	00:00:00	Bowbazar S.O (Kolkata)	Item Delivered [To: APPELLATE AUTHORITY]



J.K.Pal
3rd Floor, Flat No.- 4A
98 Desh Bandhu Road (E)
Kolkata -700035

05.07.2012

The Public Information Officer
Presidency University
86/1 College Street
Kolkata – 700073

Dear Sir/ Madam

Kindly provide me the following information under the RTI Act 2005:

1. Whether the Presidency University has complied with the Section 4(1)(b) of the Right to Information Act 2005?
2. Authenticated copy of advertisement for the post of Register published in the year 2012 for which the interview was conducted on 10th May 2012 at your University.
3. Name of all the candidates who have appeared at the interview held on 10th May 2012 for the post of Registrar.
4. Authenticated copy of the applications submitted by all the candidates who have appeared at the interview for the post of Registrar on 10th May, 2012, along with the photocopy of testimonials e,g marksheets for passing Class X, XII, Graduation, post graduation and certificate for Ph.D.etc and their copy of publications.
5. Name, designation and official address of all the members of the selection committee for the interview said interview.
6. Authenticated photo copy of the decision/ recommendation and non-recommendation of the selection committees for the interview as mentioned above.
7. Authenticated copy of the marks given to all the candidates by the members of the Selection Committee and its evaluation sheet at the interview as mentioned above.
8. Authenticated copy of the Rules and procedure for the recruitment of Registrar in your Institution.
9. Name of the candidate selected and joined in your university for the said post.
10. Whether all the selected candidates, for the post of Registrar possessed both the requisite Essential Qualifications and Desirable Qualifications as per advertisement.

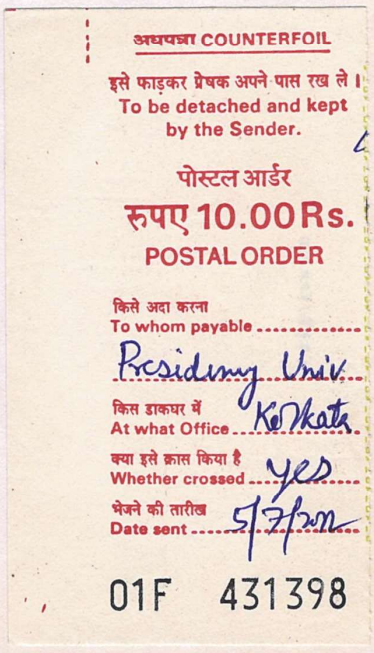
IPO for Rs.10.00, having No.01F 431498 is enclosed.

Thanks and regards

Yours sincerely

(J.K.Pal) 5/7/2012

Enclosure: As stated.



To
The State Chief Information Commissioner
West Bengal Information Commission
Bhavani Bhavan, 2nd Floor, Alopore, Kolkata - 700027

11.09.2012

Sub: Appeal for information under the RTI Act 2005

1. Name of the Complainant: J. K. Pal
2. Address: 3rd Floor, Flat No. – 4A, 98 Desh Bandhu Road (East), Kolkata – 700035
3. Telephone Number – 09474756545
4. Whether copy of the RTI requested attached: Yes
5. Whether prescribed application fee was attached with the RTI application: Yes
6. Whether copy of the 1st Appeal u/s 19(1) attached: Yes
7. Name and address of the SPIO with his telephone No. if any:

   Name - Not published in the website,

   Address – Public Information Officer,

   Presidency University,

   86/1 College Street, Kolkata – 700073

   Telephone No - Not known

8. Name and address of the 1st Appellate Authority with his / her telephone No. if any:

   Name - Not published in the website,

   Address – Appellate Authority,

   Presidency University,

   86/1 College Street, Kolkata – 700073

   Telephone No - Not known

9. Prayer or relief sought:

(i) Provide information free of cost as per section 7(6) of the RTI Act 2005, since the information was not provided within 30 days as mandated by the Act.

(ii) Impose penalty for not responding to the RTI application and Appeal.

10. Grounds for the prayer or relief: The PIO and the Appellate Authority did not responded to the RTI application dated 05.07.2012 and Appeal dated 08.08.2012 respectively denying information to the complainant/ appellant

11. Verification by the complainant

"I, Shri J.K.Pal, S/o Late J.G.Pal, residing at 98 Desh Bandhu Road (E), Kolkata – 700035, aged about 49 years being an Indian citizen, do hereby solemnly affirm that the statement made in my above complaint/ appeal are true to the best of my knowledge based on records and rest are my humble submissions to the Hon'ble West Bengal Information Commission"

12. Any other information which the complainant/ appellant intends to bring to the notice of the Commission: Track result of Speed post enclosed indicating the delivery to FAA.

13. Whether self attested : Yes

14. Page numbering : Yes

15. All index of the documents referred in the complaint/ appeal: Yes

Place: Kolkata

Date: 11.09.2012

Signature of the complainant/ appellant

Name of the appellant – J.K.Pal

INDEX

1. RTI Appeal before the Hon'ble State Chief Information Commission page 1
2. RTI application before the PIO, Presidency University page 3
3. RTI Appeal before the FAA, Presidency University page 4
4. Track Result of the Speed Post page 6

BHABANI BHAWAN
ALIPORE, KOLKATA

Name ..... Jalpal .....
Address ..... 98 B B Rd (E) .....
Whom to visit ..... RTI + CID Cyber Crime .....
Purpose of visit ..... Appeal .....
Date ..... 11.09.12 .....

2nd Floor, Minorities' Commission West Bengal

11.09.2012
DC



WEST BENGAL INFORMATION COMMISSION
Khadya Bhaban,
11A, Mirza Ghalib Street,
Kolkata-700 087
Ph. No. (033)2252-0509
Fax No. (033) 2252-0501
Website : www.wbic.gov.in
E-mail : scic-wb@nic.in

No. 2364–WBIC/RTI/1751/16 **DATE: 08.12.2016**

From: The Deputy Secretary & Addl. Registrar
West Bengal Information Commission

To:

The State Public Information Officer, Presidency University, 86/1, College Street, Kolkata – 700 073.	The Appellate Authority, Presidency University, 86/1, College Street, Kolkata – 700 073.

Appeal No.: **5408 of 2012**
Appellant: **Jadab Kr. Pal**

The Commission has received a Second Appeal on 11.09.2012 from Jadab Kr. Pal.

A copy of the Second Appeal is enclosed.

You are requested to submit a statement on the Second Appeal including a report on the action taken in the matter to this Commission by 26.12.2016.

Issued under orders of West Bengal Information Commission.

Sd/-
Deputy Secretary & Addl. Registrar
West Bengal Information Commission

No. 2364/1(1)–WBIC/RTI/1751/16 **DATE: 08.12.2016**

Copy forwarded for information to Shri Jadab Kr. Pal, 3rd Floor, Flat No. – 4A, 98, Desh Bandhu Road (East), Kolkata – 700 035.

Deputy Secretary & Addl. Registrar
West Bengal Information Commission

ON INDIA GOVERNMENT SERVICE

WEST BENGAL INFORMATION COMMISSION, Khadya Bhaban, 11A, Mirza Ghalib Street, Kolkata - 700 087.
Ph. No. (033) 2252-0509, Fax No. : (033) 2252-0501

WEST BENGAL INFORMATION COMMISSION
Khadya Bhaban,
11A, Mirza Ghalib Street,
Kolkata-700 087
Ph. No. (033)2252-0509
Fax No. (033) 2252-0501
Website : www.wbic.gov.in
E-mail : scic–wb@nic.in

Notice of Hearing

No. 2157–WBIC/RTI/1751/16 **DATE: 10.08.2017**

To:

Shri Jadab Kr. Pal, 3rd Floor, Flat No. – 4A, 98, Desh Bandhu Road (East), Kolkata – 700 035.	The State Public Information Officer, Presidency University, 86/1, College Street, Kolkata – 700 073.	The Appellate Authority, Presidency University, 86/1, College Street, Kolkata – 700 073.

Appeal No.: **5408 of 2012**
Appellant: **Jadab Kr. Pal**

The Commission has fixed a hearing in the above matter **on 30.08.2017 at 12:00 hrs.** The appeal dated 11.09.2012 of the appellant will be taken up for hearing. A copy of 2nd appeal is enclosed.

You are requested to attend the hearing with all relevant records. In case the SPIO has taken the assistance of any officer u/s 5(4) of the RTI Act, such officer may also attend the hearing.

The SPIO is further requested to submit a written statement giving the status of action taken on the RTI application of the appellant to the Commission within 23.08.2017.

Hearing shall be conducted in the **Conference Hall (I), West Bengal Information Commission, Khadya Bhaban, 11A, Mirza Ghalib Street, Kolkata – 700 087.**

Issued under orders of West Bengal Information Commission.

Law Officer & Joint Registrar
West Bengal Information Commission

No. 2157/1(1)–WBIC/RTI/1751/16 **DATE: 10.08.2017**

Copy forwarded for information to the P.S. to Hon'ble State Information Commissioner, West Bengal.

Law Officer & Joint Registrar
West Bengal Information Commission



ON INDIA GOVERNMENT SERVICE

181-

EMS SPEED POST

EW 42868696 CIN

Speed Post

WEST BENGAL INFORMATION COMMISSION, Khadya Bhaban, 11A, Mirza Ghalib Street, Kolkata - 700 08
Ph. No. (033) 2252-0509, Fax No. : (033) 2252-0501

BEFORE THE HON'BLE STATE INFORMATION COMMISSIONER
WEST BENGAL INFORMATION COMMISSION, KHADYA BHABAN, KOLKATA

In the matter of:

Section 19 (8) (b) & (c) of the RTI Act 2005

AND

In the matter of:

Compensation and penalty for denial of information

AND

In the matter of:

J. K. Pal
3rd Floor, Flat No. 4A
98 Desh Bandhu Road (East)
Kolkata – 700035
..... **Complainant / Appellant**

Vs.

The State Public Information Officer
Presidency University
86/1, College Street
Kolkata – 700073

AND

The Appellate Authority
Presidency University
86/1, College Street
Kolkata – 700073
..... **Respondents/O.P.s**

The humble petition of the abovementioned Appellant/ Complainant most respectfully sheweth:

1. Today is the date fixed for hearing.
2. That the Appellant/ Complainant made an RTI application to the State Public Information Officer, Presidency University, on 05.07.2012 and appeal before the Appellate Authority, Presidency University, on 08.08.2012, for obtaining information relating to recruitment of Registrar.
3. That the State Public Information Officer and the Appellate Authority of the Presidency University did not respond and denied information to the Appellant/ Complainant as a result he suffered huge loss and detriment to his career.
4. That the Appellant/ Complainant is to retire in the year 2024 and the information was sought in the year 2012. Considering the time period of harassment and mental loss and injury to your appellant your honor would be graciously pleased to award Rs.24.00 lakh as a reasonable compensation to the Appellant/ Complainant for the loss and detriment suffered under section 19 (8) (b) of the Right to Information Act 2005.
5. That the Hon'ble Information Commissioner should award exemplary compensation and impose punishment for denial of information the information seeker.
6. The payment for the award of compensation shall be made in favor of "Jadab Kumar Pal, A/C No. 10224443376, SBI (02029)-IND EST, BONHOOGLY (KOLKATA), IFS Code: SBIN0002029".

Under the above circumstances your honor would be graciously pleased to award exemplary compensation for Rs.24.00 lakh and impose punishment for loss and detriment suffered due to refusal/ denial of information.

AND for this act of your kindness your Appellant/ Complainant shall be ever pray and be grateful to you.

J. K. Pal, **M.Sc., LL.M., PhD (IIT)**
3rd Floor, Flat No.-4A
98 Desh Bandhu Road (East)
Kolkata – 700035

30.08.2017

Hon'ble State Information Commissioner
West Bengal Information Commission, Khadya Bhaban
11 A, Mirza Ghalib Street
Kolkata – 700087

Sub: Appeal under section 18 (8) (b) to compensate the Complainant for loss and detriment suffered

Respected Sir

I'm to inform you that both the State Public Information Officer and the Appellate Authority of the Presidency University did not respond and denied me the information as a result I suffered huge loss and detriment to my career. I'm to retire in the year 2024 and the information was sought in the year 2012. Considering the time period of harassment and mental loss and injury you may please award Rs.24.00 lakh as a reasonable compensation to me for the loss and detriment suffered under section 19 (8) (b) of the Right to Information Act 2005.

The payment for the award of compensation shall be made in favor of "Jadab Kumar Pal, A/C No. 10224443376, SBI (02029)-IND EST, BONHOOGLY (KOLKATA), IFS Code: SBIN0002029"

I shall, therefore, be ever grateful to you for this act of your kindness.

Regards,

Yours Sincerely

(J.K.Pal)

WEST BENGAL INFORMATION COMMISSION
Khadya Bhawan, 11A, Mirza Ghalib Street
Kolkata -700 087
Telephone-2252-0509
Fax No. 2252-0501
Website : www.wbic.gov.in
E-mail : scic-wb@nic.in

Appeal No. - 5408 of 2012
Right to Information Act, 2005
Date of hearing: 30.8.2017 at 12.00 hrs.

Shri Jadab Kr. Pal
Vs.
SPIO, Presidency University

Present :-

1]	Shri Jadab Kr. Pal	-	Appellant
2]	Shri Kaustav Kanti Nandi	-	Development Officer, Presidency University – representative of the Appellate Authority and Vice-Chancellor, Presidency University
3]	Shri Sanjib Chatterjee	-	Officer-in-Charge (Personnel Section) and System Administration, Presidency University – representative of the SPIO and Registrar, Presidency University.

Background:

1. Shri Jadab Kr. Pal submitted RTI application on 5.7.2012 under section 6(1) of the Right to Information Act, 2005 to the SPIO, Presidency University for providing the authenticated copy of advertisement for the post of Register published in the year 2012 for which the interview was conducted on 10.5.2012 along with related information.
2. Having not received any information, the appellant filed 1st appeal before the Appellate Authority, Presidency University on 8.8.2012.
3. Being aggrieved due to non-receipt of any information, the appellant preferred 2nd appeal before the Commission on 11.9.2012.
4. The Commission vide letter dated 8.12.2016 directed the SPIO and the Appellate Authority to submit a written statement by 26.12.2016 for taking further course of action. But no report was received during that period.
5. The Commission decided to hear the appeal on 30.8.2017.

Decision

6. The SPIO and the Appellate Authority did not attend the hearing. However, they have authorized vide letter dated 30.8.2017 Shri Kaustav Kanti Nandi, Development Officer and Shri Sanjib Chatterjee, Officer-in-Charge (Personnel Section) and System Administration, Presidency University to attend the hearing. The Commission accepts the same.
7. Perused the records and heard the submission of the parties.
8. The representative of the SPIO vide letter dated 30.8.2017 submitted action taken report to the Commission.
9. During the hearing, the SPIO explains the Commission the delay in providing the information to the appellant. The Commission accepts the same.
10. Point-wise discussions were made regarding the information sought in the RTI application. Except Point No. 4, the SPIO is directed to provide necessary information on all other points along with copies of related documents to the appellant within 4 (four) weeks from the date of receipt of this order under intimation to the Commission.
11. With the above order, the case is thus disposed of.
12. Let the authenticated copies of this order be forwarded to all concerned.

Date: 30.8. 2017

Sd/-
(G. M. P. Reddy)
State Information Commissioner
West Bengal

No. 2393 (3) (Order)-WBIC/RTI/1751/16 **Date: 30 / 08 / 2017**

Authenticated copy forwarded to:

1. The State Public Information Officer, Presidency University, 86/1, College Street, Kolkata – 700 073.
2. The Appellate Authority, Presidency University, 86/1, College Street, Kolkata – 700 073.
3. Shri Jadab Kr Pal, 3rd Floor, Flat No. 4A, 98, Desh Bandhu Road (East), Kolkata – 700 035.

Secretary & Registrar
West Bengal Information Commission

By e-mail
21.11.2017.

To
The State Chief Information Commissioner / State Information Commissioner,
Khadya Bhaban,
11A, Mirza Ghalib Street,
Kolkata - 700 087

Sub: Attendance for hearing.

Sir,

In compliance with your Order conveyed under No. _____ WBIC/RTI/_____ dated _____ for appearance for hearing on _____, I do hereby report before you for scheduled hearing.

My appearance before your honour may kindly be recorded.

With regards.

Yours faithfully.

_____


सत्यमेव जयते
SPEED POST
ON INDIA GOVERNMENT SERVICE
18/-
EMS SPEED POST
EW 07007990 9IN
Speed Post
WEST BENGAL INFORMATION COMMISSION, Khadya Bhaban, 11A, Mirza Ghalib Street, Kolkata - 700 08
Ph. No. (033) 2252-0509, Fax No. : (033) 2252-0501

Subject: Refusal of information even after direction of Hon'ble State Information Commissioner (Appeal No. 5408 of 2012)

From: JADAB KUMAR PAL (jadabpal@yahoo.co.in)

To: scic-wb@nic.in;

Cc: sec.registrar@presiuniv.ac.in; pritha@presiuniv.ac.in;

Date: Tuesday, 21 November 2017 11:17 AM

To
Hon'ble State Information Commissioner
West Bengal Information Commission
11 A, Mirza Galib Street, Khadya Bhaban, Kolkata-700 087

Attn: Sri G.M.P Reddy, IPS (Retd.)

Sir,
I am to inform you that the Hon'ble State Information Commissioner has directed the SPIO, Presidency University, to provide necessary information on all other points along with copies of related documents to the Appellant within four weeks from the date of receipt of this order under intimation to the Commission, vide para 10 of the Order No.2393(3) (Order)-WBIC/RTI1751/16, arising out of Appeal No.5408 of 2012, date of hearing 30.08.2017 at 12.00 hrs.

Till date I have not received any information. This is clearly denial of information by the Public Authority of the Presidency University. Kindly take necessary steps to provide information to me.

Regards,
--Jadab

Dr. J. K. Pal, M.Sc., PhD (IIT Kharagpur)
Sr. Administrative Officer
Indian Statistical Institute
203 B T Road, Kolkata - 700108
Mobile: 09432489098, 08240340733 (R)

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Amita Shaw, L.A,
22520508